



Acquisition Directorate

**DEPARTMENT OF DEFENSE
WASHINGTON HEADQUARTERS SERVICES
1155 DEFENSE PENTAGON
WASHINGTON, DC 20301-1155**



Control No. WHS-2025-1623-JA

March 28, 2025

**JUSTIFICATION FOR
OTHER THAN FULL AND OPEN COMPETITION (JOFOC)
UNDER FEDERAL ACQUISITION REGULATION FAR SUBPART 6.3
HQ0034-21-C-0050 - Digital Forensics Services, LLC (DFS)**

1. **AGENCY AND CONTRACTING ACTIVITY:** The Department of Defense (DoD), Washington Headquarters Services, Acquisition Directorate (WHS/AD), Enterprise Research & Engineer Directorate (ERED), Technical Analysis Branch (TAB) on behalf of the Office of the Under Secretary of Defense for Intelligence and Security (OUSD(I&S)) Executive Directorate (EXDIR).
2. **DESCRIPTION OF ACTION:** OUSD(I&S) has a continuing need for Customer Engagement & Field Support Services, Facilities & Information Technology Management Support and Security Planning, & Programming to the Executive Directorate (EXDIR), provided under HQ0034-21-C-0050, that is currently in a FAR 52.217-8 six month extension, which was awarded to Digital Forensics Services, LLC (DFS) on September 28, 2024. The current contract expires March 27, 2025, and the Government intends to extend the contract period of performance (POP) for continuity of services. The Government recently awarded the competitive long-term; Blanket Purchase Agreement (BPA) on February 14, 2025, and the concurrent Call Orders EXDIR HQ0034-24-F-0704 and Sensitive Activities & Special Programs (SASP) HQ0034-24-F-0705, were awarded February 20, 2025, to support this effort. However, on March 6, 2025, a protest was filed against the two Call Orders, resulting in a 100-day stop work order. Therefore, an extension will be required to continue services while the Government works to resolve the protest and ultimately resolicits these Call Orders amongst the Blanket Purchase Agreement (BPA) holders. WHS/AD anticipates making award of the follow-on contract by July 2025. This extension will utilize firm-fixed-price (FFP) and Time and Materials (T&M) Contract Line-Item Numbers (CLINs), with a total estimated value of \$766,896.00, using fiscal year (FY) 2025, Operation and Maintenance (O&M) Funds. The POP for the bridge contract will be from March 28, 2025, to July 27, 2025.
3. **DESCRIPTION OF SUPPLIES / SERVICES:** To accomplish the OUSD(I&S)'s objectives, the EXDIR has a requirement to maintain Customer Engagement & Field Support Services, Facilities & Information Technology Management Support and Security Planning, & Programming. This requires expertise in security, resource requirements, formulating strategies, strategic planning and concept development, program analysis and evaluation, policy, and development of solutions that assist with the decision-making process, and other areas related to the mission of OUSD(I&S). The Contractor shall provide all personnel, equipment, supplies, facilities, transportation, tools, materials, supervision, and other items and non-personal services necessary to perform services as defined in the Performance Work Statement (PWS). The Contractor's performance and deliverables shall provide wide ranging technical and administrative support and program support at the direction of the Executive Director.

Performance Period(s)	Performance Period Dates	Amount
(4) Month Bridge Extension	March 27, 2025 – July 26, 2025	\$766,896.00

Controlled by: WHS/AD
CUI Category(ies): SP-PROCURE
Limited Dissemination Control: FEDCON
POC: Syreeta A. Donald, syreeta.a.donald.civ@mail.mil

4. **AUTHORITY CITED:** This action is authorized under provisions of 10 U.S.C. 2304(a)(1), FAR 6.302-1(a)(2)(iii)(B), "Only one responsible source and no other supplies or services will satisfy agency requirements." More specifically, "For DoD...services may be deemed to be available only from the original source in the case of follow-on contracts for the continued provision of highly specialized services when it is likely that award to any other source would result in [u]nacceptable delays in fulfilling the agency's requirements."
5. **REASON FOR AUTHORITY CITED:** EXDIR requires continued, support from the incumbent in order to fulfill its requirement for professional, technical & administrative support. Only one source is capable of providing the supplies or services required at the level of EXDIR requires continued, support from the incumbent in order to fulfill its requirement for professional, technical & administrative support. If not, the Government would experience unacceptable delays in providing the necessary support for EXDIR and subsequently within the OUSDI&S Enterprise. This action is necessitated by a formal protest received in response to the intended award for technical, professional, administrative, management, policy, and operational support under a newly awarded Blanket Purchase Agreement (BPA) for OUSD(I&S). The BPA was awarded on February 14, 2025, and the protested EXDIR and SASP Call Orders was awarded on February 20, 2025, with a transition-in start date of March 13, 2025. This current contract is in a FAR 52.217-8 extension and expires on March 27, 2025. Due to the anticipated time required to resolve this protest through the formal process, a bridge contract with the incumbent vendor is critical to avoiding any disruption in essential support services.

Failure to extend these services and losing the support and expertise of the DFS contract team would result in incalculable delays that would derail or halt the mission and other efforts in the EXDIR. These delays would impact the EXDIR's on-going efforts to provide daily physical and personnel security support to OUSD(I&S) as well as facility and IT support to the entire organization. In addition, failure to extend DFS' support to solicit the work would result in substantial duplication of cost to the Government. The substantial duplication of cost is estimated at \$253,047.88 and is not expected to be recovered through competition. The estimated cost of \$766,896.00 for this four (4) month extension includes approximately 3,744 additional labor hours or more, for approximately more than six (6) full time equivalents (FTE) needed from another vendor to provide the support services to OUSD(I&S) and EXDIR. The Government would incur significant onboarding, training, and knowledge transfer duplication of costs in order to reach the current incumbent's level of expertise for only four months of work. The Government estimates the following duplication of cost breakdown:

Onboarding and Training: \$18,856.33 based on a week of onboarding costs which consists of in-doc with security, updating credentials on Common Access Card (CAC), Pentagon Access, and network accounts being processed.

Knowledge Transfer: \$37,712.66, based on estimated 80 hours required for current staff to document work and transfer knowledge.

Opportunity Cost of Delays: \$196,478.88, assuming a 30-day lapse in service to compete the award, based on financial risk due to delayed ability to address national regulatory issues arising from key U.S. regulatory bodies, executive branch agencies. The ability to provide research and advice to develop and advance strategy that addresses the evolving international regulatory environment.

Awarding services to a contractor other than DFS would involve multiple transitions between potential vendors (incumbent vendor, temporary vendor, and new long-term vendor) which involves the Government paying multiple vendors for the transition of different contracts for continuous support, for an estimated \$253,047.88. These multiple transitions involve additional resources and unnecessary costs for the Government, and can cause unacceptable risks, delays and interruptions in services. To accomplish the work within the allotted schedule, the follow-on effort must seamlessly follow the initial effort to maintain continuity of services. Therefore, an extension to DFS is needed to continue providing services while the Government works to resolve the protest and ultimately

resolicits these Call Orders, if necessary. If a new contractor were to transition into the environment, it would cause a 21-30-day gap in support due to the amount of time that it would take to bring on new personnel, conduct the appropriate security indoctrination procedures, issue new accounts, and grant accesses to respective applications. These 30-days would not account for any ramp up or training time that would be needed, that would add another 15-30 days. This sort of gap or work stoppage in support is unacceptable to continuity of EXDIR's mission. To maintain continuity of services, an extension of services is the most logical and cost-effective solution to the Government as a gap in support would be detrimental.

In addition, while the Government is working to resolve the protest, DFS will continue providing support on critical functions and activities for EXDIR such as coordinating with WHS Financial Management Directorate (FMD) and other stakeholders on the President's budget for FY2026, ensuring IT and secure communications requirements are being met, and supporting time-sensitive information-sharing efforts in support of the multiple executive orders and efficiencies that I&S is responsible for. DFS staff will also continue providing support directly to the Under Secretary of Intelligence & Security in the areas of secure communications and facility support. A degradation in support directly to the Under Secretary is unacceptable.

More specifically, there are currently several ongoing initiatives where a break in continued service from DFS would disrupt critical progress being made as listed below:

DEVELOPMENT OF PRESIDENT'S BUDGET AND PROGRAM OBJECTIVE

MEMORANDUM: EXDIR's Financial Management team is in the process of building the Intelligence and Security's (I&S) FY 2026 President's budget. There are new Executive Orders coming in daily regarding budget and planning actions that require tremendous attention to detail, historical knowledge and familiarity with data and stakeholders in order to respond with accuracy and context. These are critical, time-sensitive budget activities to which the DFS contractor team provides daily support.

INFORMATION-SHARING VIA SHAREPOINT INITIATIVES: EXDIR's Technology Integration team is in the process of responding to numerous Executive Orders and DOGE Efficiencies associated with multiple facets. These E.O.s and data calls are related to Deferred Resignation Program, DoD Hiring Freeze, Probationary Employee Status, and potential Reduction in Force and other critical areas; the data calls require a great deal of coordination and communication. In order to track, communicate and respond in a timely and efficient manner, OUSDI&S leverages SharePoint heavily. These items require immediate and timely action. The DFS contractor team provide direct and critical support to these initiatives. If a new contractor were to come in, it would create an untimely gap in support causing a 30-45-day delay in operations with additional impacts to larger OUSDI&S responsibilities. This would generate an unacceptable level of risk.

Based on the initiatives mentioned above, the existing DFS contract provides critical support to the daily operations of EXDIR. The DFS contract team are embedded with federal EXDIR staff and have current knowledge about a plethora of initiatives happening across the Department of Defense (DoD). The award of a four (4) month bridge contract extension to DFS, prevents duplicative cost and unacceptable delays in fulfilling the operational objectives of the EXDIR. DFS's critical support is necessary to the I&S enterprise and avoids adverse impact on the initiatives while the Government cancels the EXDIR and SASP Call Order(s), works to resolve the protest and ultimately resolicits the EXDIR and SASP Call Orders amongst the Blanket Purchase Agreement (BPA) holders.

6. **EFFORTS TO OBTAIN COMPETITION:** Due to the urgent need to extend services to avoid a lapse in contractor support, the Government published a "Notice of Intent" (NOI) on SAM.GOV to notify industry of its intent to extend services on March 11, 2025, with a closing date of March 14, 2025. The NOI posted did not receive any responses.

7. **FAIR AND REASONABLE COST DETERMINATION:** The Contracting Officer (CO) determines that the anticipated prices will be fair and reasonable by using the techniques identified at FAR 15.404-1 “Proposal Analysis Techniques”, specifically FAR 15.404-1(b)(2)(ii) and FAR 15.404-1(b)(2)(v) to ensure award will be at fair and reasonable prices. In addition, the Government will compare proposed prices set forth by DFS to historical prices paid by the Government under the current contract, HQ0034-21-C-0050. The Government will also compare proposed prices with the Independent Government Cost Estimate (IGCE) prepared for the period of performance extension and request price reductions or discounts.
8. **MARKET RESEARCH:** Market Research has been limited to the NOI to sole source this action and was posted on SAM.gov as described in paragraph 6, above. WHS/AD will issue an administrative modification to the existing contract to extend services for an additional four (4) months to maintain continuity of support being provided to EXDIR. The contract extension is the most efficient and logical strategy and solution to the Government to avoid unacceptable delays in fulfilling the agency’s requirement and a potential gap in performance of critical services to EXDIR.
9. **OTHER FACTS:** Due to the irreparable damage that may result to EXDIR's mission should services be interrupted, a sole source contract extension will be negotiated with DFS. DFS has been critically instrumental to the success and continuation of EXDIR's mission.
10. **INTERESTED SOURCES:** To date, no other sources have expressed an interest, feedback, or challenges in writing and no bids or proposals have been received to the Notice of Intent” required by FAR 5.201, that was published on SAM.GOV to notify industry of its intent to extend services.
11. **ACTIONS TO INCREASE COMPETITION:** This requirement was initially competed with fair opportunity to the vendors deemed capable and eligible under the establishment of the WHS-AD OUSDI Enterprise multiple award BPA via the General Services Administration (GSA) Multiple Award Schedule (MAS) 8(a) Pool. However, due to a protest filed against the BPA’s EXDIR Call Order award made from the fair opportunity solicitation, and severe time constraints due to the protest being filed weeks before the end of the current bridge contract POP, the Government must restrict award consideration and implement an extension to DFS. Soliciting an open competition for a contract for these services will take at least 120 days based on the \$4 million contract value, which would cause a gap in services. EXDIR’s mission cannot afford any interruption of services or resultant gap in services to compete an additional contract during the protest. There could be irreparable damage to EXDIR's mission should services be interrupted and/or delayed.
12. Is this acquisition for a non-competitive follow-on acquisition previously awarded on a non-competitive basis?
 - ☒ Yes. A copy of the previous justification is attached. The actions to remove any barriers to competition cited on the previous justification ☒were ☐ were not completed.
 - ☒No. The original acquisition was conducted on a competitive basis.
 - ☐Not Applicable. This is a new requirement.

CERTIFICATION

I, hereby, certify that the supporting data under my cognizance included in this justification are accurate and complete to the best of my knowledge and belief.

Marcia Jones, Contracting Officer's Representative

Date

Syreeta Donald, Contracting Officer

Date

APPROVAL

This justification is approved.

David H. Kao, Competition Advocate

Date